CHAPTER 360

THE PUBLIC OFFICERS (SALARIES AND ALLOWANCES) ACT

[PRINCIPAL LEGISLATION]

Arrangement of Sections

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SCHEDULE

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CHAPTER 360

THE PUBLIC OFFICERS (SALARIES AND ALLOWANCES) ACT

An Act to make provision for the salaries and allowances to be paid to persons holding certain public offices, and for the payment of gratuities to certain public officers.

[9th December, 1961]

[s. 1]

Ord. No.
69 of 1961
[R.L. Cap. 460]
C.A.
Acts Nos.
2 of 1962
41 of 1965
25 of 1966

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Short title

1. This Act may be cited as the Public Officers (Salaries and Allowances) Act.

Interpretation

2. In this Act, unless the context requires otherwise-

"allowances"-

(a) includes, where the person concerned is a person to whom the allowances are payable, the allowances referred to in clause 3 of the agreement made between the Government of Tanzania and Her Majesty's Government in the United Kingdom and known as the Overseas Service (Tanganyika) Agreement, 1961;

(b) does not include any compensation, gratuity or pension payable in respect of service in a public office.

Repealed

3–4. [Repealed by R.L. Cap. 500 4th Sch.]

Salaries and allowances of certain public officers

5. There shall be paid in any year to the holders of the public offices specified in the first column of the Schedule-

(a) the salaries respectively specified opposite to the offices in the second column of the Schedule; and

(b) the allowances to which the holders of the offices are from time to time respectively entitled.

Gratuity payable to certain officers

6.–(1) Where the holder of an office to which this section applies is not under the terms of his appointment to that office otherwise entitled to receive any pension or gratuity in respect of his service in that office he shall, upon his ceasing to be the holder of that office, be paid in respect of his service in that office a gratuity amounting to one year's salary in that office or at the rate of twenty-five *per centum* of the salary for each completed year of his service in that office, whichever shall be the greater:

Provided that, the holder of an office to which this section applies shall not be paid a gratuity in accordance with the provisions of this section if he ceases to be the holder of that office by reason of his resignation from it without permission or by reason of his removal from it, in accordance with the provisions of the Constitution relating to removal from that office, for inability to perform the functions of such office except where the inability arises from infirmity which does not result from his own willful neglect or default or for misbehaviour.

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(2) A gratuity payable under subsection (1) shall be charged on and paid out of the Consolidated Fund without further appropriation than this Act.

(3) The offices to which this section applies are the offices of Judge of the High Court and Controller and Auditor-General.

(4) In this section the expression "salary" shall, where the holder of the office has under the terms of his appointment to it been entitled to receive any allowance by whatever name called by way of addition to the basic salary appropriate to the office as an inducement to serve in that office, be deemed to include that allowance.

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SCHEDULE

(Made under section 5)

Acts Nos.	*Office*	*Annual Salary*
41 of 1965 s. 19 25 of 1966 s. 23	Chief Justice	Two thousand nine hundred pounds
	Puisne Judge	Two thousand five hundred pounds
	Controller and Auditor-General	Two thousand four hundred pounds
	The Chairman of the Permanent Commission of Enquiry	Three thousand pounds
	Other members of the Permanent Commission of Enquiry	Two thousand pounds

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